

PROFESSIONAL SERVICES AGREEMENT

This Agreement is entered into as of the date of electronic acceptance (“Effective Date”)

BETWEEN:

DEEPTALK LTD

[Platform Legal Name], a company incorporated under the laws of Kenya, with its registered office at [Address] (“Platform”)

AND

The registered wellness professional accepting these terms (“Therapist”)

Collectively, the “Parties”.

1. Recitals

- A. The Platform operates a digital wellness marketplace connecting users with independent wellness professionals.
- B. The Therapist is a qualified wellness professional who wishes to offer services through the Platform.
- C. The Parties wish to define their respective rights and obligations in a fair, transparent, and commercially reasonable manner.

2. Scope of Services

2.1 The Therapist shall provide wellness services through the Platform as outlined in Schedule A.

2.2 The Therapist controls their availability by publishing time slots via the Platform.

2.3 Once a session is booked, it constitutes a professional commitment subject to this Agreement and Platform policies.

3. Independent Contractor Relationship

3.1 The Therapist acts as an independent contractor and not as an employee, agent, or partner of the Platform.

3.2 The Therapist is solely responsible for professional licensing, insurance, and compliance with applicable laws.

4. Booking, Attendance & Conduct

4.1 Session booking, attendance standards, lateness thresholds, and rescheduling rules are governed by Schedule C.

4.2 The Therapist shall attend sessions punctually and professionally.

4.3 Repeated lateness or failure to attend sessions may trigger enforcement measures.

4.4 User conduct is governed separately under Platform user policies.

4.5 User No-Shows and Cancellations

4.5.1. The Therapist acknowledges that client attendance, punctuality, and cancellations are governed by the Platform's user-facing policies as may be updated from time to time.

4.5.2.A client shall be considered a no-show if they fail to attend a booked session within the time threshold communicated by the Platform.

4.5.3.User no-shows or late cancellations shall not constitute misconduct or breach by the Therapist, provided the Therapist was available and present in accordance with the scheduled session time.

4.5.4.The Platform shall determine, in accordance with its policies, whether a session affected by a user no-show qualifies as a completed, partially completed, rescheduled, or forfeited session for payment and record purposes.

5. Fees and Payments

5.1 Pricing, commissions, payment timelines, and deductions are governed by Schedule B.

5.2 The Platform acts as a payment facilitator only and does not guarantee session bookings or income.

6. Intellectual Property & Content

6.1 The Therapist retains ownership of all professional content created by them.

6.2 Platform intellectual property remains the exclusive property of the Platform.

6.3 Any licensing arrangements are governed by Schedule D.

7. Platform Obligations

The Platform shall:

7.1. Provide the technical infrastructure to allow the Wellness Professional to deliver services, upload content, and access User Data.

7.2. Maintain security and privacy of User Data in accordance with Schedule E.

7.3. Process payments to the Wellness Professional as per Schedule B.

7.4. Offer support to the Wellness Professional for technical or operational issues.

7.5. Provide guidance on compliance obligations; however, the Platform is not responsible for the Wellness Professional's regulatory or professional compliance.

8. Data Protection & Confidentiality

8.1 Each Party shall comply with applicable data protection laws.

8.2 Specific data handling obligations are governed by Schedule E.

9. Indemnity & Liability

9.1 The Therapist indemnifies the Platform against claims arising from professional services rendered.

9.2 The Platform disclaims liability for the quality or outcome of services provided by the Therapist.

10. Dispute Resolution

10.1. Good Faith Resolution

Neither Party shall commence legal proceedings against the other except where such action is urgent and necessary. The Parties shall first attempt to resolve any dispute, controversy, or claim arising out of or in connection with this Agreement (“Dispute”) through good faith discussions and alternative dispute resolution mechanisms before resorting to court proceedings.

10.2. Notice of Dispute

A Party shall notify the other Party in writing of the existence of a Dispute and the nature of the issues involved. Upon such notice, the Parties shall, within seven (7) Business Days, engage in informal negotiation or mediation, or such other timeframe as may be mutually agreed, with a view to resolving the Dispute.

10.3. Escalation to Arbitration

If the Dispute is not resolved within thirty (30) Business Days from the date of the Parties’ first meeting or engagement to resolve the Dispute, either Party may elect to submit the Dispute to confidential and binding arbitration.

10.4. Arbitration Rules and Costs

Arbitration shall be conducted in accordance with the mediation and arbitration guidelines of the Chartered Institute of Arbitrators (Kenya).

The initiating Party shall pay fifty percent (50%) of the arbitration fees upfront, with the other Party paying the remaining fifty percent (50%) upon conclusion of the arbitration process.

Where the responding Party is unable to pay its share of the arbitration fees, the initiating Party may, at its discretion, either:

- proceed with arbitration and bear the full cost; or
- withdraw its demand for arbitration.

10.5. Each Party Bears Own Costs

Each Party shall bear its own costs and expenses (including arbitration fees, filing fees, advocates' fees, and witness expenses) incurred in connection with any arbitration or litigation arising under this Agreement.

10.6. Continued Performance

The Parties shall continue to perform their respective obligations under this Agreement during the pendency of any Dispute, unless such performance is rendered impossible or impractical by the nature of the Dispute.

11. Termination and Enforcement

11.1 Termination for Convenience

Either Party may terminate this Agreement for convenience by providing thirty (30) days' written notice to the other Party.

11.2 Termination for Cause

The Platform may terminate this Agreement immediately upon written notice if the Therapist:

- a) materially breaches this Agreement and fails to remedy such breach within seven (7) days of written notice;
- b) engages in professional misconduct, gross negligence, or unethical conduct;
- c) provides services without valid licensing or authorization;
- d) repeatedly fails to attend sessions, arrives unreasonably late, or otherwise breaches Platform session standards; or
- e) violates applicable law, data protection obligations, or client confidentiality.

11.3 Progressive Enforcement

Unless the breach is serious or poses risk to users, the Platform shall apply progressive enforcement measures, which may include:

- a) written warning;
- b) temporary suspension or reduced visibility;
- c) permanent removal from the Platform after three (3) documented warnings.

11.4 Immediate Termination

> The Platform may immediately terminate this Agreement without prior notice where the Therapist's conduct:

- a) poses a risk to client safety or wellbeing;
- b) exposes the Platform to legal or regulatory liability; or
- c) involves fraud, misrepresentation, or abuse of the Platform.

11.5 Effect of Termination

Upon termination:

- a) the Therapist's profile shall be deactivated after completion of any pending confirmed sessions, unless immediate termination applies;
- b) outstanding payments for completed sessions shall be settled in accordance with Schedule B;
- c) the Therapist shall cease representing themselves as affiliated with the Platform.

11.6 Survival

Clauses relating to confidentiality, intellectual property, indemnity, limitation of liability, and dispute resolution shall survive termination.

12. Severability

If any provision of this Agreement is held to be invalid, unlawful, or unenforceable by a court or tribunal of competent jurisdiction, such provision shall be enforced to the maximum extent permissible, and the remaining provisions shall continue in full force and effect.

13. Entire Agreement

13.1. This Agreement, together with its Schedules and any policies expressly incorporated by reference, constitutes the entire agreement between the Parties in relation to the subject matter hereof and supersedes all prior or contemporaneous discussions, representations, communications, or agreements, whether oral or written.

13.2. No reliance is placed on any statement, promise, or representation not expressly set out in this Agreement or its Schedules.

14. Governing Law

14.1. This Agreement is governed by the laws of Kenya.

15. Acceptance

15.1. This Agreement is entered into electronically. By clicking “I Agree”, “Accept”, or by completing registration and offering services through the Platform, the Therapist acknowledges that they have read, understood, and agreed to be legally bound by the terms of this Agreement.

Entire Agreement

Schedule A – Services and Professional Responsibilities

1. Overview of Services

The Wellness Professional (“You”) will provide wellness and therapeutic services to users of the Platform, including but not limited to:

Counseling, coaching, therapy, or other mental health and wellness services within Your professional scope;

Use of Platform tools (telehealth video, messaging, document sharing) to deliver services;

Completing and maintaining records, consent forms, and documentation as required by law or professional standards.

2. Platform Excluded Services

The Platform is a software and communications tool and does not provide:

Emergency medical treatment, urgent care, or crisis response services;

Prescription of medications or pharmaceutical management;

Diagnosis or treatment of medical conditions;

Any medical services that require a licensed healthcare facility.

Clarification: These Excluded Services apply only to the Platform. You, the Wellness Professional, remain fully responsible for any services you provide within your professional license, including prescribing medication where legally permitted.

3. Professional Responsibilities

You agree to:

Deliver services in accordance with all applicable laws, regulations, and professional standards;

Obtain all necessary consents, authorizations, or releases from clients before providing services;

Ensure client confidentiality and compliance with privacy laws (e.g., HIPAA, where applicable);

Maintain appropriate licensure and qualifications for the services provided;

Use the Platform only for lawful and professional purposes and not as a substitute for emergency or urgent care;

Promptly address and report any security breaches, unauthorized access, or technical issues related to the Platform.

4. Limitations

The Platform provides technical and administrative tools only and is not responsible for your professional decisions, clinical judgment, or the outcomes of your services;

You are solely responsible for your interactions with clients and any professional liability arising from your services;

You acknowledge that clients may contact emergency services independently, and you will provide guidance consistent with professional and legal standards without relying on the Platform for urgent care functions.

5. Acknowledgment

By signing this Schedule, You acknowledge that:

You understand the distinction between Platform services and your professional services;

You accept full responsibility for your professional conduct, including prescribing, counseling, and therapy;

You will not represent the Platform as a provider of medical, emergency, or urgent care services.

Schedule B – Fees and Payment Structure

1. Roles

Client: The end-user booking and paying for wellness services through the Platform.

Wellness Professional: The service provider delivering wellness services via the Platform.

Platform: The intermediary facilitating bookings, payments, and the marketplace for services.

2. Fee Structure

Clients pay the Platform directly for sessions or services booked.

The Platform will take a commission of 15% from the service fee paid by the Client.

The remaining balance after commission will be disbursed to the Wellness Professional.

3. Payment Roadmap

- Client books and pays for a session through the Platform.
- The Platform deducts its commission from the payment.
- The remaining balance is transferred to the Wellness Professional via their chosen payment method (e.g., bank transfer, mobile money, PayPal).
- The Platform will provide a payment statement for each disbursement, showing session details, gross fees, commission deducted, and net payment.

4. Adjustments and Refunds

Refunds, cancellations, or chargebacks will be accounted for by the Platform before transferring payments to the Wellness Professional.

Any disputes regarding payments must be raised within [X] days of the statement date.

5. Taxes and Statutory Obligations

Wellness Professionals are solely responsible for reporting and remitting taxes or statutory contributions on the fees received.

The Platform is not responsible for any personal tax obligations but may provide reports summarizing earnings.

6. Acknowledgment

By signing this Schedule, the Wellness Professional acknowledges that:

Payments are based on Client-paid service fees minus the Platform's commission;

They understand the payment flow from Client → Platform → Wellness Professional;

They accept responsibility for all taxes and statutory obligations arising from fees received.

Schedule C – Session Booking, Attendance, and Rescheduling Standards

1. Booking of Sessions

All sessions must be scheduled exclusively through the Platform.

Wellness Professionals must maintain accurate and up-to-date availability to enable clients to book sessions.

Session confirmations are sent automatically via the Platform; Professionals are responsible for monitoring and honoring these bookings.

2. Attendance Standards

Wellness Professionals must attend all confirmed sessions.

Professionals must log in on time and be prepared to deliver the full session as booked.

Lateness thresholds:

Up to 20 minutes late: session may proceed at the Professional's discretion; Client may still be charged the full session fee.

Beyond 20 minutes late: session may be rescheduled or canceled per Platform policy; Professional may be subject to penalties or fee deductions.

3. Rescheduling and Cancellations

Professionals may reschedule sessions only through the Platform, providing 6 hours/days notice.

Last-minute rescheduling or cancellations by Professionals may incur a penalty or affect the Professional's Platform rating.

Clients may request rescheduling through the Platform; Professionals must respond promptly to such requests.

In emergencies where rescheduling is unavoidable, Professionals should notify both the Platform and the Client as soon as possible.

4. No-Show Rules

A no-show occurs when a Professional fails to attend a confirmed session without adequate notice.

Consequences of no-shows may include:

Fee deductions;

Temporary suspension of Platform access;

Repeated violations may result in termination from the Platform.

5. Acknowledgment

By signing this Schedule, the Wellness Professional acknowledges:

Understanding and acceptance of the booking, attendance, lateness, and rescheduling rules;

Responsibility for adhering to these standards to ensure a consistent and professional experience for Clients.

Schedule D – Wellness Professional Content Licensing

1. Content Uploaded

The Wellness Professional may upload the following types of content to the Platform:

- a. Written Materials: E-books, articles, guides, or research notes.
- b. Multimedia Content: Videos, webinars, podcasts, recorded live sessions.
- c. Interactive Tools: Forms, templates, quizzes, or assessments developed by the Wellness Professional.
- d. Other Professional Resources relevant to wellness services provided via the Platform.

2. License Granted to Platform

By uploading content, the Wellness Professional grants the Platform:

- a. A non-exclusive, worldwide, royalty-free license to host, display, distribute, and make the content available to Platform users.

b. The right to use, modify, or adapt the content as necessary for Platform operations (e.g., formatting, accessibility, technical integration).

c. The license is limited to the duration of the PSA and terminates automatically upon account termination, except for content already distributed to users under active subscriptions or bookings.

3. Ownership

The Wellness Professional retains full ownership of all uploaded content.

The Platform does not claim ownership over the Wellness Professional's content.

The Wellness Professional represents and warrants that they have all rights, licenses, and permissions required to upload and license the content to the Platform.

4. Platform Obligations

a. The Platform will make reasonable efforts to host, display, and deliver the Wellness Professional's content accurately.

b. The Platform may provide tools, templates, or training to enhance content presentation but does not create content on behalf of the Wellness Professional.

c. The Platform is not responsible for user outcomes from the use of uploaded content.

5. Restrictions

The Wellness Professional agrees not to upload content that:

a. Infringes the rights of any third party.

b. Violates any law or regulation.

c. Contains harmful, misleading, or illegal information.

6. Termination of Access

a. Upon termination of the PSA, the Platform will remove access to all uploaded content.

b. Copies of content may remain in backups for a reasonable period for operational, legal, or archival purposes.

Schedule E – Data & Compliance

1. User Data Access

a. The Platform collects and stores personal data of Platform users (“User Data”), including:

- Name, contact information, age, and health/wellness information relevant to services booked.
- Payment and transaction records.

b. The Wellness Professional may access only the User Data necessary to provide their services (e.g., session bookings, session notes, or any information voluntarily shared by the user).

c. The Platform controls the overall data infrastructure and security.

2. Data Use

- a. The Wellness Professional may use User Data only for the purpose of delivering booked wellness services and improving client outcomes.
- b. The Wellness Professional must not share, sell, or otherwise distribute User Data outside the Platform.
- c. Aggregated, anonymized data may be used by the Platform for analytics, reporting, or improving services, but without identifying individual users.

3. Compliance Obligations

The Wellness Professional must comply with all applicable laws and regulations in providing services, including:

- Data protection and privacy laws (e.g., Kenya Data Protection Act).
- Professional licensing and sector-specific regulations.

The Platform will provide tools and guidance to help the Wellness Professional meet compliance obligations but is not responsible for the Wellness Professional's compliance.

4. Security Measures

- a. The Platform will implement industry-standard technical and organizational measures to protect User Data.

b. The Wellness Professional must maintain reasonable safeguards for any data downloaded or shared for session purposes (e.g., session notes, health assessments).

c. Any data breach or security incident must be reported to the Platform immediately, so appropriate action can be taken.

5. Data Retention

a. User Data is retained only as long as necessary for Platform operations, legal obligations, or client support.

b. Upon termination of the Wellness Professional's account, access to User Data will be revoked, but the Platform may retain necessary data for compliance or audit purposes.

6. Confidentiality

a. The Wellness Professional acknowledges that all User Data and Platform business information are confidential.

b. Confidential information must not be disclosed to third parties except as required by law.